INVESTMENT DUE DILIGENCE MEMORANDUM & BOARDROOM CIRCULAR

【投資審査稟議書】 日本・インド二国間ベンチャー投資適格性評価データルーム

Dossier Ref: TJH-2026-VC01	Date: October 24, 2026	Evaluator: Value Create Inc. (Tokyo) & JETRO	Status: [精査要] CRITICAL_RED_FLAG_REJECT

Drafter 起 案 ¦ 国際投資部	Reviewer 審 査 ¦ 法務コンプラ	Forensic Auditor 精 査 ¦ 財務DD室	Committee 合 議 ¦ 投資委員会	Final Approver 決 裁 ¦ 代表取締役
佐藤 (Sato)	鈴木 (Suzuki)	高橋 (Takahashi)	田中 (Tanaka)	渡辺 (Watanabe)
[承認済]	[承認済]	[否認/保留]	[審査中]	[決裁待ち]
2026-10-24	2026-10-24	2026-10-24	2026-10-24	2026-10-24

Target Enterprise:	PhantomTech Solutions Private Limited (CIN: U74999DL2024PTC389102)	Governance Score:	10 / 100
Sovereign DPI Rails:	[PASS] RBI Account Aggregator (DEPOSIT v2.0) ¦ [PASS] GSTN e-Invoice IRN Verified ¦ [PASS] MCA-21 Direct Registry	CA Opinion:	QUALIFIED_MATERIAL_UNCERTAINTY

Pitch Deck Claimed ARR	2.55 Cr	\ 4,590 万円	Founder self-reported deck claim
CA General Ledger (Zoho/Tally)	2.55 Cr	\ 4,590 万円	Internal trial balance sales register
Cleared Bank Cash (RBI AA)	0.59 Cr	\ 1,062 万円	72.7% Divergence (Gap: 157.1L / \2,828万円)
True Cash Runway	0.0 Months	Claimed: 18.0 Mo	Net of 28.3L (\509万円) pending statutory tax dues

STATUTORY FORENSIC FINDINGS & BOARDROOM ACTION MEMORANDUM

[CRITICAL] Undisclosed Section 188 Promoter Self-Dealing & Siphoning: Direct RTGS debit of 4,130,000.00 disbursed to Apex Cloud Solutions LLP. Slicing characters 3-12 of GSTIN '29ABCPS1234F1Z5' reveals PAN 'ABCPS1234F', which matches company Director Vikram Malhotra. Zero Board Resolution (Form MGT-14) or Audit Committee pre-approval on record. (Statute: Companies Act 2013 Section 188 (Related Party Transactions) & Section 185 (Prohibition of Loans to Directors))

[CRITICAL] Fictitious / Phantom Revenue Invoicing Without Cleared Bank Cash (PHAN-INV-2026-001): Invoice PHAN-INV-2026-001 for 1,800,847.46 (+ 324,152.54 GST) was booked in CA sales and uploaded to GSTR-1, but marked 'UNOFF_SET_UNPAID' on GSTR-3B. Zero customer remittances entered the sovereign bank ledger across 180 days, inflating reported ARR by 57.8%. (Statute: Central Goods & Services Tax (CGST) Act 2017 Rule 88C (Tax Discrepancy) & ICAI SA 240 / SA 505 (Auditor Confirmation of Debtors))

[CRITICAL] Fictitious / Phantom Revenue Invoicing Without Cleared Bank Cash (PHAN-INV-2026-002): Invoice PHAN-INV-2026-002 for 1,800,847.46 (+ 324,152.54 GST) was booked in CA sales and uploaded to GSTR-1, but marked 'UNOFF_SET_UNPAID' on GSTR-3B. Zero customer remittances entered the sovereign bank ledger across 180 days, inflating reported ARR by 57.8%. (Statute: Central Goods & Services Tax (CGST) Act 2017 Rule 88C (Tax Discrepancy) & ICAI SA 240 / SA 505 (Auditor Confirmation of Debtors))

Cryptographic Tamper-Proof Merkle Root: 0xefa23b3b02820dee4d33ac8907f7fef60709337c89c72aebd983153e80098de5
Admissible under Section 65B of the Indian Evidence Act 1872 & J-SOX Internal Control Standards. Generated by VeriLedger Engine.